

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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ADRIAN RODRIGUEZ,

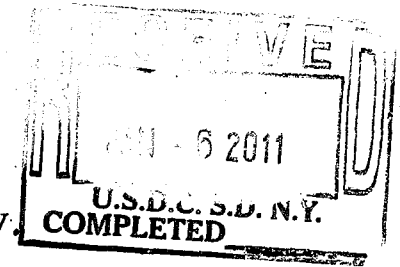
Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER GRACE
O'SULLIVAN, shield no. 25849, DETECTIVE RYAN
CURLEY, shield no. 4410, DETECTIVE KEITH
OPALICK, shield no. 5323, DETECTIVE ORDERIA
WAY, shield no. 7134, POLICE OFFICER STEVEN
MIKOLANDA, shield no. 28952, POLICE OFFICER
KURT JONES, shield no. 8320, POLICE OFFICER
ANGIOLET LIVRERI, shield no. 14262, and POLICE
OFFICER RYAN CHRISTOPHER, shield no. 24843, and
other unidentified members of the New York City Police
Department,

Defendants.
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11 CIV.



COMPLAINT

JURY TRIAL DEMANDED

ECF CASE

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. Plaintiff Adrian Rodriguez, a mentally challenged individual, was falsely arrested and maliciously prosecuted in violation of the First, Fourth, Fifth, and Fourteenth Amendments to the United States Constitution. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully confined plaintiff; caused the unjustifiable arrest of plaintiff; caused the unlawful

8. New York City Detective Ryan Curley, shield number 4410, is and was at all times relevant herein a detective, officer, employee, and agent of the New York City Police Department.

9. On the date of plaintiff's arrest, October 29, 2009, Detective Ryan Curley was assigned to the Manhattan North Detective Squad.

10. Detective Curley is being sued herein in his individual and official capacity.

11. New York City Detective Keith Opalick, shield number 5323, is and was at all times relevant herein a detective, officer, employee, and agent of the New York City Police Department.

12. On the date of plaintiff's arrest, October 29, 2009, Detective Keith Opalick was assigned to the Manhattan North Detective Squad.

13. Detective Keith Opalick is being sued in his individual and official capacity.

14. New York City Detective Orderia Way, shield number 7134, is and was at all times relevant herein a detective, officer, employee, and agent of the New York City Police Department.

15. On the date of plaintiff's arrest, October 29, 2009, Detective Orderia Way was assigned to the Manhattan North Detective Squad.

16. Detective Orderia Way is being sued in his individual and official capacity.

17. New York City Police Officer Steven Mikolanda, shield number 28952, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

18. On the date of plaintiff's arrest, October 29, 2009, Police Officer Steven Mikolanda was assigned to the Manhattan North Precinct.

19. Police Officer Steven Mikolanda is being sued in his individual and official capacity.

20. New York City Police Officer Kurt Jones, shield number 8320, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

21. On the date of plaintiff's arrest, October 29, 2009, Police Officer Kurt Jones was assigned to the Manhattan North Precinct.

22. Police Officer Kurt Jones is being sued in his individual and official capacity.

23. New York City Police Officer Angiolet Livreri, shield number 14262, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

24. On the date of plaintiff's arrest, October 29, 2009, Police Officer Angiolet Livreri was assigned to the Manhattan South Precinct.

25. Police Officer Angiolet Livreri is being sued in her individual and official capacity.

26. New York City Police Officer Ryan Christopher, shield number 24843, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

27. On the date of plaintiff's arrest, October 29, 2009, Police Officer Ryan Christopher was assigned to the Manhattan North Precinct.

28. Police Officer Ryan Christopher is being sued in his individual and official capacity.

29. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

30. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

51. The tight handcuffs caused plaintiff's wrists to be red and swollen.

52. Defendants transported plaintiff to the Manhattan North Precinct.

53. Defendants locked plaintiff in a holding cell.

54. Thereafter, plaintiff was brought to an interview room.

55. Defendant Detective Ryan Curley and the other defendants spoke to plaintiff Adrian Rodriguez throughout the day.

56. At no time prior to speaking with plaintiff Adrian Rodriguez did Detective Curley or the other defendants read plaintiff his Miranda rights.

57. Detective Ryan Curley and the other defendants told plaintiff Adrian Rodriguez that they would not let him go home to his mother until he confessed to his involvement in the stabbing of an individual in Manhattan.

58. Detective Ryan Curley and the other defendants told plaintiff that several students from a high school in Manhattan stabbed and assaulted a student at the school.

59. Detective Ryan Curley and the other defendants accused plaintiff Adrian Rodriguez of knowing the individuals who stabbed and assaulted the student.

60. Detective Ryan Curley and the other defendants accused plaintiff Adrian Rodriguez of being involved in the assault and stabbing of the student in Manhattan.

61. Detective Ryan Curley and the other defendants showed plaintiff Adrian Rodriguez photographs of other individuals accused of being involved in the assault and stabbing and accused plaintiff of knowing the individuals.

62. Plaintiff denied any knowledge of the assault and stabbing.

63. Plaintiff denied knowing any of the people depicted in the photographs shown to him.

73. Defendant Detective Curley and the other defendant police officers and detectives knew or should have known that plaintiff was physically unable to communicate anything close to the information contained in the statement that was written by defendant Detective Curley on October 29, 2009.

74. The process of being arrested and interrogated by defendants visibly frightened plaintiff Adrian Rodriguez.

75. In fact, plaintiff Adrian Rodriguez cried throughout the course of the detention and interrogation by defendants.

76. Defendants knew or should have known based upon plaintiff's behavior that he was vulnerable and could be pressured into signing any statement that the defendants told him to sign.

77. Nevertheless, defendant Detective Curley and the other defendant police officers and detectives coerced plaintiff Adrian Rodriguez to sign the statement written by defendant Detective Curley by telling him that he would be able to go home sooner if he signed the statement.

78. Additionally, defendants told plaintiff Adrian Rodriguez that he would remain in jail for three days unless he signed the statement that was written by defendant Detective Curley.

79. After plaintiff Adrian Rodriguez signed the statement that was written by defendant Detective Curley, his photograph and fingerprints were taken and he was placed in a holding cell.

80. Thereafter, plaintiff Adrian Rodriguez was transported to Manhattan Central Booking.

81. Eventually plaintiff was arraigned and was released on his own recognizance at arraignment.

82. Plaintiff paid Five Thousand Dollars (\$5,000) to retain a criminal defense attorney.

83. Plaintiff made twelve (12) court appearances during underlying criminal prosecution.

84. The individually named defendant police officers and detectives charged plaintiff Adrian Rodriguez with Assault in the Second Degree (PL 120.05(2)) and Gang Assault in the Second Degree (PL 120.06).

85. The individually named defendant police officers initiated a prosecution against plaintiff Adrian Rodriguez by signing a Criminal Court Complaint.

86. The Criminal Court Complaint that was signed by Detective Curley and the other individually named defendants contained false statements.

87. The individually named defendant police officers and detectives provided false information to the Assistant District Attorney and to the Grand Jury to explain why plaintiff was arrested and why they believed there was probable cause to prosecute him.

88. Plaintiff Adrian Rodriguez was indicted by a Grand Jury based upon the false, fabricated, and/or coerced confession that was written by defendant Detective Curley and never made by plaintiff.

89. The presumption of probable cause created by the Grand Jury indictment is rebuttable in this case because the indictment was based upon a false, fabricated, and/or coerced confession that was presented to the grand jury.

90. All charges against plaintiff were dismissed on December 15, 2010 pursuant to the recommendation of the New York County District Attorney's Office.

91. It is undisputed that plaintiff Adrian Rodriguez was not involved in the assault and stabbing for which he was arrested and prosecuted because the actual perpetrators have now been identified.

92. The individually named defendant police officers and detectives who were not personally involved in the arrest, handcuffing, and prosecution of plaintiff observed the other defendants violate plaintiff's rights under the Constitution of the United States and did nothing to prevent the violation of plaintiff's Constitutional Rights.

93. The excessive force, malicious prosecution, false arrest, false imprisonment, failure to intervene, due process violations and Fifth Amendment violations to plaintiff by the individually named defendant police officers and detectives caused plaintiff to sustain physical pain and suffering, as well as psychological and emotional trauma.

94. There is a policy, practice or custom within the New York City Police Department wherein New York City Police Officers improperly and unconstitutionally detain, interrogate, and elicit statements from individuals with mental disabilities and/or diminished mental capacities.

95. Defendant City of New York and the New York City Police Department are deliberately indifferent to the fact that New York City Police Officers improperly and unconstitutionally detain, interrogate, and elicit statements from individuals with mental disabilities and/or diminished mental capacities.

96. As a result of the aforementioned policies and practices and defendant City of New York's deliberate indifference about the fact that New York City Police Officers

improperly and unconstitutionally detain, interrogate, and elicit statements from individuals with mental disabilities and/or diminished mental capacities, there is a pattern, policy, custom or practice of New York City Police Officers obtaining false and inaccurate statements and confessions from said individuals and causing unwarranted prosecutions against them.

97. The aforementioned, unconstitutional policies, practices, and customs of defendant City of New York and the New York City Police Department caused plaintiff's Constitutional rights to be violated from October 29, 2009 through December 15, 2010.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and

Fourteenth Amendment Rights

98. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. Defendants Police Officers Grace O'Sullivan, Steven Mikolanda, Kurt Jones, ANGIOLET Livreri, and Ryan Christopher and Detectives Ryan Curley, Keith Opalick, and Orderia Way who were acting in concert and within the scope of their authority, falsely arrested and caused plaintiff Adrian Rodriguez to be imprisoned and criminally prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth

Amendment Rights

100. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. The use of excessive force by defendants Police Officers Grace O'Sullivan, Steven Mikolanda, Kurt Jones, ANGIOLET Livreri, and Ryan Christopher and Detectives Ryan Curley, Keith Opalick, and Orderia Way, acting in concert, in tightly handcuffing plaintiff was an objectively unreasonable physical seizure of plaintiffs in violation of his rights under the Fourth Amendment of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

THIRD CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment Rights

102. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. Defendants Police Officers Grace O'Sullivan, Steven Mikolanda, Kurt Jones, ANGIOLET Livreri, and Ryan Christopher and Detectives Ryan Curley, Keith Opalick, and Orderia Way who were acting in concert and within the scope of their authority, compelled plaintiff Adrian Rodriguez to be a witness against himself in a criminal case when they coerced him to sign a statement, written by defendant Detective Curley, that he did not make, could not read, and did not understand, and caused said statement to be used against plaintiff throughout

the course of the criminal prosecution against him, and caused plaintiff Adrian Rodriguez to be imprisoned and criminally prosecuted without probable cause in violation of the Fifth Amendment to the Constitution of the United States.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourteenth Amendment Rights

104. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. Defendants Police Officers Grace O'Sullivan, Steven Mikolanda, Kurt Jones, ANGIOLET Livreri, and Ryan Christopher and Detectives Ryan Curley, Keith Opalick, and Orderia Way who were acting in concert and within the scope of their authority, deprived plaintiff Adrian Rodriguez of life, liberty, or property without the due process of law.

106. Defendants Police Officers Grace O'Sullivan, Steven Mikolanda, Kurt Jones, ANGIOLET Livreri, and Ryan Christopher and Detectives Ryan Curley, Keith Opalick, and Orderia Way, who were acting in concert and within the scope of their authority, obtained a signed statement from plaintiff Adrian Rodriguez by using methods that are so brutal and so offensive to human dignity that they shock the conscience and violate the Due Process Clause of the Fourteenth Amendment of the United States Constitution.

107. Defendants Police Officers Grace O'Sullivan, Steven Mikolanda, Kurt Jones, ANGIOLET Livreri, and Ryan Christopher and Detectives Ryan Curley, Keith Opalick, and Orderia Way, who were acting in concert and within the scope of their authority, engaged in behavior that was intended to injure plaintiff Adrian Rodriguez and said intent is unjustifiable by any government interest.

108. Defendants Police Officers Grace O'Sullivan, Steven Mikolanda, Kurt Jones, ANGIOLET Livreri, and Ryan Christopher and Detectives Ryan Curley, Keith Opalick, and Orderia Way, who were acting in concert and within the scope of their authority, compelled plaintiff Adrian Rodriguez to be a witness against himself in a criminal case when they coerced him to sign a statement, written by defendant Detective Curley, that he did not make, could not read, and did not understand, and caused said statement to be used against plaintiff throughout the course of the criminal prosecution against him, and caused plaintiff Adrian Rodriguez to be imprisoned and criminally prosecuted without probable cause, and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FIFTH CAUSE OF ACTION

False Arrest and False Imprisonment

109. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York and under the Fourth Amendment to the United States Constitution. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

111. Defendants Police Officers Grace O'Sullivan, Steven Mikolanda, Kurt Jones, ANGIOLET Livreri, and Ryan Christopher and Detectives Ryan Curley, Keith Opalick, and Orderia Way were at all times agents, servants, and employees acting within the scope of

their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Malicious Prosecution

112. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 111 with the same force and effect as if more fully set forth at length herein.

113. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and under the Fourth Amendment to the United States Constitution.

114. Defendants commenced and continued a criminal proceeding against plaintiff Adrian Rodriguez.

115. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff Adrian Rodriguez and for each of the charges for which he was prosecuted.

116. The prosecution and criminal proceedings terminated favorably to plaintiff Adrian Rodriguez.

117. Plaintiff Adrian Rodriguez was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

118. Defendants Police Officers Grace O'Sullivan, Steven Mikolanda, Kurt Jones, ANGIOLET Livreri, and Ryan Christopher and Detectives Ryan Curley, Keith Opalick, and Orderia Way were at all times agents, servants, and employees acting within the scope of

128. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

129. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

130. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully arrested and prosecuted.

131. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiffs' constitutional rights.

JURY DEMAND

132. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays for relief as follows:

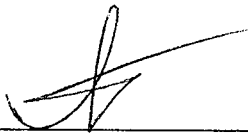
That the jury find and the Court adjudge and decree that plaintiff Adrian Rodriguez shall recover compensatory damages in the sum of \$7,000,000 against the individual defendants and the City of New York, jointly and severally, together with interest and costs; and punitive damages in the sum of \$1,000,000 against the individual defendants, jointly and severally.

a. That the plaintiff recovers the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

b. That the plaintiff has such other and further relief as the Court shall deem just and proper.

Dated: New York, New York
December 29, 2010

By: _____


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